

Custom, Law and Ideology in Papua New Guinea

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This paper seeks to illustrate some of the distinctive national features of the relationship between custom, law, and ideology in Papua New Guinea. While the concept of 'native custom' was initially the creation of Australian colonial law, the relationship between custom and law acquired a new complexion around the time of national independence in 1975, and the political use of the Tok Pisin words kastom and lo, both then and since, reveals that their relationship is not like that of the two things commonly known as 'custom' and 'law' in the English language or the political discourse of a country like England or Australia. Instead, their relationship has to be understood through an exploration of the metaphorical use of the Tok Pisin word rot ('road'), which seems to stand for something midway between a 'cult' and an 'ideology', and through an understanding of the way in which the social relations of large-scale resource development have transformed the post-colonial political landscape.

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Introduction

This paper seeks to illustrate some of the distinctive national features of the relationship between custom, law, and ideology in Papua New Guinea (PNG). My argument has two main elements. First, I suggest that the concepts of law and custom have each attained an ideological tinge or flavour at certain moments in PNG's political history, but not in a form that would allow us to say that their mutual relationship has been encompassed, or even articulated, by a nationalist ideology. I then proceed to suggest that an ethnographic understanding of the relationship

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between custom and law needs to take account of another ideology, which I describe as an 'ideology of landownership'. This second ideology reflects a nationwide struggle to capture the benefits derived from large-scale mining and petroleum projects, and its political significance is readily explained by the dominant role of extractive industry in the national economy. As a result, the primary opposition of law to custom, as a field of political discourse, has been eclipsed or displaced by the secondary opposition of land (or resource) law to customary land (or resource) ownership.

This paper is also meant as a contribution to debates about the relationship between legal and anthropological approaches to the concept of custom or customary law as the property of native or indigenous peoples. If we think of this relationship as a debate between lawyers and anthropologists, indigenous or otherwise, then I would argue that PNG's version of this debate has neither the gravity nor resonance of the equivalent discourse in Australia. Ethnographic evidence does sometimes find its way to court in PNG, but the authors are normally absent, if not dead and buried, so anthropologists who work in PNG are rarely bothered by the thought of having to defend their findings under oath. There were some anthropologists who contributed to the design or interpretation of colonial legislation on matters of 'native custom' (e.g. Mair 1970), but most preferred to keep a safe intellectual distance from the apparatus of colonial rule. This attitude was softened by the rhetoric or culture of national independence, when a whole new raft of legislation was floated on the spiritual waters of the National Constitution, and some anthropologists assisted in the active reconstruction of 'customary law' (Epstein 1974; Strathern 1975). However, this new wave of interest receded with the changing fashions of the discipline and the many disillusionments of post-colonial developmentalism. Some expatriate anthropologists have contributed to the education of indigenous lawyers, as well as indigenous anthropologists (Scaglione 1983), but most indigenous lawyers, like most expatriate lawyers, are more interested in picking the pockets of their clients than picking through the obscurities of current ethnographic wisdom. So if we now put our ears to the ground on which the two professions might be talking to each other, we hear long periods of silence punctuated by occasional debates at odd corners of the national policy process, where the nature of 'custom' has almost accidentally become a bone of contention because it is the key to an unsafe deposit box containing a very large amount of money.

Anthropological reflections on Indigenous law and custom in Australia have been thoroughly transformed by the Mabo judgement of 1992 and the native title process which has followed from it. If there has been an event of equal significance in PNG, I suggest it was the outbreak of the Bougainville rebellion in 1988, because that event created a new demand for anthropologists to reflect on the local social impact of large-scale mining and petroleum projects (Filer 1990). However, most of the anthropologists who volunteered to meet this demand were not obliged to modify their understanding of indigenous 'custom' or customary land ownership as a result of any practical engagement with the law. Nor should we assume that anthropologists

have ever occupied a similar position in the conceptual and practical relationship between 'custom' and 'law' in both jurisdictions, even when PNG was under Australian rule.

The Australian colonial authorities in PNG were primarily interested in the substance of 'native custom' because of their compulsion to eliminate those customs deemed repugnant to the values of Western civilisation. The Administration drew one basic line in the sand, and each new brand of Christianity distinguished its own mission by enlarging this sphere of repugnance. But customs pertaining to the ownership of 'native land' were left to lurk in the shadows of paternalistic tolerance (Quinn 1981). If the Administration wanted to declare some land to be 'waste and vacant', or to acquire some land from its 'native owners', or to settle a dispute between such owners, this could all be done by dealing with a few leaders and enforcing an agreed outcome (Oram 1973; Wolfers 1975).

A new vision of customary land was announced with the passage of the Land Titles Commission Ordinance in 1962.¹ By this Act, the colonial administration set out to construct a single map of all the tribal and clan boundaries in the country, which was to be based on the deliberations of 500 Land Demarcation Committees, each containing representatives of a small number of neighbouring tribal communities conducting their own land investigations and reporting the results to an expatriate Commissioner. This ambition never came close to being realised. Indigenous political leaders grew increasingly suspicious of Australian schemes for the systematic registration of customary land titles because of the threat thus posed to customary values and institutions (Hide 1973; Fingleton 1982). Their concerns led to the establishment of a Commission of Inquiry into Land Matters in 1973. This body, whose Commissioners were all indigenous, sought to establish an entirely new set of legal institutions which would apply customary values to the management of customary land.² Chief among these was the Land Disputes Settlement Act of 1975 (the year of national independence), which established a hierarchy of Land Mediators, Local Land Courts, and District (now Provincial) Land Courts to resolve disputes over customary land, and left the Land Titles Commission to perform the residual task of resolving disputes about whether a given piece of land has or has not been removed from the domain of custom (Fingleton 1982; Ward 1983).

During the colonial period, anthropologists maintained a duty of care towards 'native custom' that set them apart from all the other agents of the colonial enterprise. But they could treat it as the *generic* object of their own actions and reflections only so long as its native owners did *not* think and talk about it as one of the *many* things that occupied their own cultural landscape. Once 'custom' became a topic of village conversation, anthropologists began to treat it as a symbolic tool applied to the destruction of the colonial legacy or the reconstruction of an ethnic identity. Meanwhile, the legal fraternity, which had formerly dismissed the concept of 'customary law' as an oxymoron, now recovered its integrity in the form of an 'underlying law' which had survived the colonial encounter, but still lay buried in the

ground *beneath* the colonial edifice of legal institutions (Kaputin 1975; Narokobi 1980, 1989).³

When land acquires a monetary value without becoming a tradable commodity, lawyers and policy makers are inclined to treat 'custom' as if it is a form of law which can be applied to the distribution of whatever money can be derived from this unmarketable object (including their own fees). Disputation about the customary ownership of land and natural resources has now become the very heart of the modern body politic in PNG. The actual process of large-scale resource development in PNG has fostered an 'ideology of landownership' which portrays the 'customary landowner' as the very model of what it means to be an 'automatic' (or indigenous) citizen of that country (Filer 1997). The 'man in the street' is a man in a village or 'clan' or 'tribe' or other 'customary group' demanding a share of the benefits derived from the extraction of natural resources contained within its territorial boundaries.⁴

This is the context in which we need to explore the complexity of the relationship between the 'customary landowner' and the concept of 'custom' as a separate realm of belief or action, and to see how this relationship has evolved over the last few decades, both within and beyond the framework of the law. In dealing with these issues, I shall try to tease out the difference between the opposition of 'custom' to 'law', in the conventional English sense, and the evolving usage of the Pidgin words *kastom* and *lo*. Since the vocabulary of Melanesian Pidgin or Tok Pisin includes a lot of words that sound like their English counterparts, we may naturally tend to assume that they have identical meanings. Yet the limited size of this 'neo-Melanesian' vocabulary also means that some of these words, like *kastom* and *lo*, have occupied a much wider semantic space. As we shall see, the surplus space occupied by these two words is a space traversed by the metaphorical use of the Pidgin word *rot* ('road') to describe something that might be counted as an ideology, in much the same way that followers of Chairman Mao would talk about the opposition between the socialist and capitalist 'roads'. When the words *kastom* and *lo* are used in this weightier sense, to refer to a 'road' as well as a set of rules, I shall render their English translations with capital letters, as 'Custom' and 'Law', and call these 'Roads'. The question then is how the literal and metaphorical relationships between these two Roads are related to each other, or how the bigger contrast is related to the smaller one.

The Fragmentation of the Law

My first experience of ethnographic research in PNG, in the dog days of Australian colonial rule, was with a Sepik community whose members were thoroughly obsessed with 'the Law'. They spent an inordinate amount of time in the discussion and eventual resolution of local disputes in moots convened by one of the two local government councillors or their five village deputies (*komiti*), which explains why these seven individuals were known collectively as the 'Law Men' of the community.

Much of this time was devoted to the question of what 'the Law said' about the precise amount of money which one party ought to pay another by way of compensation for a specific offence. But the whole gamut of village conversation, from heated public confrontations to fireside chats and narrative reflections, was riddled with remarks like 'this is what the Law says', 'this is covered by the Law', 'the Law does not allow this', and 'we must behave ourselves, by following the Law'. Indeed, the very act of speaking could be represented as a form of illegality, as when a man remarked, while telling of an argument that could have led to fighting: 'There was nothing to be said. If something had been said, there would have been the Law. If people had persisted in their talk, there would have been another fine to pay.'

Within the setting of the village moot, mention was occasionally made of 'ancestral law' (*lo bilong tumbuna*), which was as close as people then got to the concept of 'custom'.⁵ But anyone who sought to justify some action by this means might just as well have made a straight admission of defeat or ignorance, and often did so shortly afterwards. For all that followed was some incontestable rejoinder, such as 'that is another Road' or 'that is not a Road, because' (and here the speaker often paused for emphasis) 'there is the Law'. So if 'ancestral law' was indeed 'another Road', it was clearly a dead end, a form of 'law' that not only diverged from the 'new law' which was Law with a capital 'L', but had also been abolished by it.⁶ The forms of behaviour gathered under this rubric—fighting, sorcery, polygyny, and so forth—were primarily distinguished by the fact of having been outlawed by the colonial administration or else condemned as wicked and immoral by Christian missionaries.

Being, as I then was, a romantic young anthropologist who would much prefer to witness a colourful initiation ceremony than listen to interminable disquisitions on the details of colonial legislation, I sometimes felt that I was living with a group of people who had been thoroughly subordinated or encapsulated by the Great White Power.

Yet things were not quite what they seemed. First, much of what 'the Law said' was attributed to the Local Government Council of which the Law Men were the locally elected representatives. Second, it turned out that many of the 'rules' which they articulated in the process of dispute settlement had not in fact been passed by the Council, so in that sense, 'the Law' was an object of their own invention, just as their 'courts' had no legal authority within the colonial regime.⁷ Third, the instant dismissal of 'ancestral law' within the setting of the moot was not repeated with any such urgency or clarity outside that setting, even by the Law Men themselves. These men sometimes described themselves as 'middle men' (*namel man*), by which they meant that their task was to 'weigh' (*skelim*) the laws of the white man against those of the ancestors, and, even if the balance always seemed to tip to one side in the performance of their public roles, it was matched by a private feeling of ambivalence which brought some compensating comfort to the anthropologist. In private, they and other male members of the community would divide ancestral law between the

‘good things’, such as male initiation, which they had agreed to put aside for the promise of better things to come, and the ‘bad things’, such as sorcery, which were best forgotten yet survived to haunt the present.

According to the Law Men, the charter for this state of affairs was an earlier agreement to call a halt to male initiation ceremonies, despite their privately acknowledged merits. This agreement was represented as part of a deal between a whole generation of ‘middle men’, mostly born within a year or three of 1940, and an older generation of ‘big men’, whereby the latter had ceded leadership of the community to the former as part of a deliberate strategy to use the Rule of Law as an instrument to secure their political domination of the less enlightened communities in the neighbourhood. This larger group of about forty ‘middle men’ had all been recruited in their youth to work as catechists for the Catholic Mission which had first entered the area in 1952. During the 1960s, all of them had been posted to villages in which they were strangers, often lonely and afraid, expected by their European mentors to persuade the rest of the population to forsake the ways of Satan by communicating what they knew (not much) of the New Testament in Tok Pisin. Most of these pioneers had since retired from what they now regarded as a somewhat thankless task, yet this had counted as their own form of initiation into ‘the new Law’, and in that sense, it qualified all of them to be counted as Law Men. The formal positions of ‘councillor’ and ‘deputy’ simply circulated among this group by their own mutual agreement.

It was only with the benefit of hindsight that I came to appreciate the brilliant success of the political strategy for which the ‘big men’ of the community had agreed to ‘keep their peace when there was talk of new things’, because the Law Men were able to use their network of contacts to secure the election of one of their number as the Member of Parliament for Nuku Open Electorate in 1977, and he retained this position for the next twenty years (see Filer 1996). However, when I returned to the community about one year after his first victory, I found the rest of the Law Men in an unexpected state of despondency. One of them articulated this sentiment by lamenting that the Law had been ‘broken’. He meant that the inter-cultural or inter-generational space which the Law Men, as ‘middle men’, had previously occupied and created through the invention of their own ‘common law tradition’ had now been swept away by the legal innovations of the self-governing and independent State of PNG—most notably the Village Courts Act of 1973 and the Land Disputes Settlement Act of 1975. Not only had Village Court Magistrates and Local Land Mediators separated the legal powers formerly monopolised by representatives of the Local Government Council, and thus divided the one Road into three divergent paths; they were also obliged to recognise the authority of an object now called ‘custom’ (*kastom*), which threatened to become a Road in its own right.⁸

This new concept of ‘custom’ had been spreading through the Sepik region for several years, just as it had previously spread through Bougainville and the islands of the Bismarck Archipelago. Dove (1977, p. 82) says that some Bougainvilleans refused

to participate in Local Government Council elections in 1969 on the grounds that 'elections are not one of our customs' (*i no stap long custom* [sic] *bilong mipela*), and a Bougainvillean member of the House of Assembly, Paul Lapun, had cited 'local custom' as the ground for persuading the House to grant 5 per cent of mineral royalties to local landowners in 1966. However, I have not found evidence of Bougainvilleans using the Tok Pisin term when the Native Customs (Recognition) Act was passed in 1963 (see Ogan 1972), and the passage of this Act does not in itself seem to have triggered its dissemination.

The word *kastam* (sic) is said to have been a commonplace of village discourse in parts of New Ireland by 1970 (Foster 1995, p. 25), where its original appearance might have been due to debate about the 'new laws' of customary land tenure which followed the establishment of Land Demarcation Committees in 1966 (Clay 1972; Jessep 1980). The Land Titles Commission Act of 1962 implied that the members of these committees (like the Land Mediators later appointed under the Land Disputes Settlement Act) should have been persons 'familiar with custom in relation to land' in their sphere of operation. Otto says that the establishment of such committees in Manus Province in the late 1960s 'led to the proliferation of land cases and to the development of a traditionalist discourse concerning land ownership' (1992, p. 282), but it is not clear whether the word *kastam* entered village discourse by this route, or whether it was brought back by migrants to urban areas (ibid., p. 279). Schwartz (1993, p. 519) says that the word *kastom* (sic) was first applied to the 'government and school sponsored festivities' which became popular at this time, and makes no mention of its use in local debates about land tenure.

In East Sepik Province, where Land Demarcation Committees were never established, the word *kastom* began to gain currency in the wake of the national elections which brought the first Somare government to power in 1972, and there is little doubt that Michael Somare and other Sepik members of the national political and intellectual elite were the main authors of its growing popularity (Allen 1990, p. 195; Dye 1990, p. 226; Schindlbeck 1990, p. 236).⁹ The word had certainly not made an appearance in 'my' community in West Sepik Province when I left the field in 1974, and might not have done so until the time of the next national election campaign in 1977, when the Law Men won their great victory. But when it did arrive, it came with the multiplicity of meanings which are the hallmark of its present usage in Tok Pisin, and make it mean much more than 'customary law'. Unlike their counterparts in other parts of the Sepik region, the leaders of this community did not countenance the resurrection of male initiation ceremonies as a celebration of *kastom*, but they did apply this term to a form of competitive yam display, which was apparently borrowed from another community in the neighbourhood and might thus count as a case of 'invented tradition'. This was not the sort of thing that might conceivably enter into the deliberations of a Land Mediator or a Village Court, even if it was visible proof of the revaluation of 'ancestral law'.

I would not say that the erstwhile Law Men were hostile to this novel manifestation of *kastom*, and that is partly because the word was taken to signify 'traditional

culture' rather than 'customary law'. While customary law may well be the offspring of colonial and postcolonial legislation, I suggest that Custom with a capital 'C' has been conceptually separated from the Law, and really does count as another Road which is no longer encompassed by legislation, unless it be the very broad endorsement of 'Papua New Guinean ways' in the Preamble to the National Constitution. Custom therefore takes its place alongside other Roads, such as Business (*bisnis*), Religion (*lotu*), or that very Melanesian (but now unfashionable) *Rot Bilong Kago* (Lawrence 1964),¹⁰ as an independent entity within the local political landscape. Once it had that status as a local and indigenous conception of 'traditional culture', anthropologists soon made a meal of debating its place and value, its 'invention' or its 'authenticity', within the neo-Melanesian mindscape (e.g. Keesing & Tonkinson 1982; Carrier 1992; Jolly 1992; Thomas 1992; Lindstrom & White 1994; Errington & Gewertz 1995; Foster 1995).

However, in their fascinating search for the true significance of *kastam* or *kastom*, anthropologists have been inclined to neglect those bits of 'custom' that are still subordinated to the Law. That is partly because the members of so many local communities have lost their own faith in the Law (or the State) as a road to salvation or a source of authority. My Sepik friends were unusual in the extent of their devotion to the Rule of Law, even in its late colonial heyday, and their faith was severely shaken within a few years of national independence, despite the success of their own political strategies.

If older people are now inclined to remember the Law as a Road that was blocked or diverted by the growth of post-colonial politics, the law has surely not evaporated from the nation's political culture. Indeed, when I postulate the growth of a new ideology of landownership in the postcolonial period (Filer 1997), I suggest that the *legal* status of the 'customary landowner' has become the ground on which people construct the social relations of 'resource development' as a hegemonic form of economic activity. Furthermore, it could be this very form of development which has divorced the 'customary landowner' from Custom, precisely because it has intensified the legal attachment of the landowner to the land for reasons which are *not* 'traditional' or even 'cultural'. If the 'customary landowner' is the Melanesian equivalent of the 'man in the street', the street on which that man is standing could be any of the Roads which Melanesians talk about in Tok Pisin, while customary land is the 'ground' across which all these metaphorical roads (as well as many real ones) have to pass.

If anthropologists have trouble with this line of argument, that might be due to their belief that each of these metaphorical roads is not just a 'discrete cultural idiom' (Allen 1981, p. 131) or an 'institutional and semantic sphere' (Otto 1992, p. 270) or a separate 'domain of activities' (Foster 1995, p. 6), but is also an instance of reification in the Marxist sense, and therefore counts as an ideology in its own right. If that were so, my Sepik friends would have been practising a fetishism of the Law formally equivalent to the fetishism of commodities represented in the discourse of Business,

and the discourse of Custom might be counted or translated as a form of anti-colonial or nationalist ideology.

If the Law included things which were not actual laws, but rules made up by local councillors, and if Custom includes things which are not real customs, but 'invented traditions', then again we seem to confront a form of distortion or concealment which has the flavour of an ideology (Schwartz 1993). But the fetish of commodities—the essential form of capitalist ideology—is not a misrepresentation of *things*, but a reification of *social relations*. While the Road called Business may lead to the social relations of small-scale commodity production (Foster 1995), the concept of *bisnis* does not seem to cover the large-scale exploitation of natural resources, and most other Roads, including those called Law and Custom, do not seem to be connected with any specific form of productive activity—unless it be the production of formal occasions like court proceedings or initiation ceremonies.

In that sense, the reality behind each metaphorical road is a form of public performance which reveals, displays, and dramatizes the social relations of everyday life, and thus provides a stage for the construction of male authority. In that sense, all metaphorical roads are really ritual roads, and might only seem like mysterious 'things' because their names are hard to translate from Pidgin to English. Even Business may count as a Road only when it is understood to entail the public consecration of trade stores, tractors, or other capital assets, and may not count as a Road when people do not value ceremonies of this type (Otto 1991, p. 242).

If the Law is a Road which has lost much of its appeal in village discourse, like the real roads which have also suffered from a serious lack of maintenance, it is surely also true that anthropologists would rather feast their eyes and ears on the public performance of 'traditional culture' than on the mundane rituals of the judicial process. Village Courts and Local Land Courts have been subject to a limited amount of ethnographic scrutiny over the last two decades (e.g. Strathern 1972; Scaglion 1990; Brison 1992; Goddard 1996, 1998, 2000; Demian 2003), yet their proceedings account for only one aspect of the legal and political discourse through which the social relations of large-scale resource exploitation (or 'development') are constructed. Where the State has been partially colonised by 'traditional' or 'customary' forms of society, the result is a debate about customary law, customary land, and customary groups which articulates the ideology of landownership in a space distinct from the ritual road map contained in the hybrid, creolized discourse of local communities.

The Road That Got Away

In 1994, I answered a call from the Chairman of the Lihir Mining Area Landowners Association to provide advice to himself and other leaders of the Lihir island community in New Ireland Province. The subject of this advice was to be the implications of anthropological work which I had undertaken in the Lihir islands

over the previous decade, following the discovery of a major gold deposit in 1984 (see Filer 1995). The Chairman was especially interested in the question of how to 'enhance the confidence of the Lihir people' in the socio-economic component of the Environmental Management and Monitoring Program which the mining company had recently submitted to the national government.¹¹

When I sought further guidance from my clients on the significance of this question, I was told that the real aim of the exercise was to support their 'Society Reform Program'. I had not heard of this before, and so I asked them what it was about. 'Strengthening Custom' (*strongim kastam*) was the answer.

The apparent paradox was resolved, to some extent, in the text of various documents the Chairman and his close associates had been producing since the time of my previous visit in 1992. These were intended to show that the people of Lihir had the capacity to escape their reputation as 'cargo cult people' by developing new institutions that would be able to manage the social and economic impact of a large-scale mine.¹² The role of 'custom' in this process was explained as follows:

Society Reform . . . starts off with the hypothesis that the traditional Lihir society is capable of smooth transition to a modern Lihir society as a result of Mining Development . . . [W]hile greatly handicapped and in the twenty-fourth hour before the first day of the Mining Development Era, the critical decision had been made. The development of the mine must go ahead. Lihirians have found a strategy to adjust and catch up with the right frequency on impacts of mining development while it happens. The Lihir Society Reform initiative is the strategy. (Lihir Mining Area Landowners Association 1993, p. 1)

The first of the Program's four stated objectives was thus 'To Reform, Strengthen and Develop the Lihir Traditional Clan System', and this was understood to entail a set of actions:

- a) To reform, preserve and utilise the traditional clan system as the basic unit of organisation within local communities as well as within the Lihir society as a whole.
- b) To preserve and utilise the 'House-Boy' tradition as the institutional head-quarter of the clan.
- c) To preserve and strengthen the 'House-Boy' tradition as a place of honour and respect for all.
- d) To reform, strengthen and develop a basic clan operational structure . . . [and use it] as the official channel of communication and operation during the society reform implementation period . . .
- e) To recollect, harness and develop the basic strength and wisdom of the Lihir customary ways as a home-base to foster business and economic development in harmony with established business principles and practices.
- f) To recollect, harness and develop the basic strength, wisdom and the capacity to solve problems of the Lihir customary ways as a home base to foster human development in harmony with Christianity principles and the world of science and technology. (ibid., pp. 2–3)

How could my own 'scientific' assessment of local society contribute to this plan of action? The best I could suggest was a list of 'products' which community leaders might choose to regard as embodiments of local custom (or Custom), and for which it might be worth their while to make the mining company pay.

One product on the list was a film of Lihir mortuary ceremonies, because, as I explained in my report, the performance of such ceremonies is the 'thing' that local people normally mean when they speak of 'custom' (Filer 1994, p. 18). The *hausboi* ('men's houses') are the venues for 'producing custom' in this sense, and serve as physical reminders of its past performance, so they would get their own share of 'honour and respect' in a commemorative movie.¹³

A second item on the list was a manual of customary land tenure, because I knew that the mining company had already engaged one of its Lihirian staff to draft a set of 'Lihir Land Rules'. This had evidently been 'compiled by a committee comprising of landowners, village leaders, village magistrates, Government and LJV [Lihir Joint Venture] representatives' in the belief that it would be 'the key to resolving future land disputes over the inheritance, ownership and the transfer of land on Lihir' (Kabariu n.d., p. 1). The reservation which I voiced in my report was about the difficulty of 'putting this kind of law into one book, because we know that it tends to change in the middle of each argument or story attached to a particular piece of land', so I proposed that the manual should include a sample of such arguments or stories, and not just a set of 'rules' (Filer 1994, p. 18).¹⁴

Now the performance of mortuary ceremonies, the production of Custom, was embedded within the 'Lihir Land Rules' to the extent that two of the four main rules were about the transfer of land within the context of this performance, and these were two out of three exceptions to 'Rule Number One', which was the basic rule of matrilineal inheritance.¹⁵ Rule Number Two was the one which enabled a man's children to gain rights to his clan's land through their contributions to his mortuary feast, while Rule Number Three referred to a practice known as *erkuet* in the Lihir language, by which a 'big man' or 'clan leader' would instruct the other members of his clan to strangle his own wife after his death and bury the couple together as a mark of respect for her own part in producing the feasts which had established his high status.¹⁶ Rule Number Three counted as a 'land rule' because the wife's clan then received some land from the husband's clan 'as compensation for the killing because she was killed for the benefit of the husband's clan and a great loss to the wife's clan' (Kabariu n.d., p. 2).

However, as John Burton remarked in his commentary on the 'Lihir Land Rules', the fact that *erkuet* 'is no longer a practical option' means that 'the certainty or title that this method [of] transfer is believed to have had merely contrasts with the unlikelihood of ever testing this out' (Burton 1993, p. 1). He went on to say that the significance of dead customs for live arguments can be framed only by the general truth that 'Lihir land transactions are about the exercise of power within the society and the balance between the strength of *de facto* claims (claims on the basis of deeds)

that sons can exert on fathers' nephews and the means of *de jure* resistance (rights on the basis of rules) that nephews can put up in opposition to this'. In which case, 'even the act of codifying the land rules is itself a decision to weigh in on the side of nephews!' (ibid., p. 2)

Burton's misgivings about the codification of Lihirian customary land law may have been misplaced. For one thing, the architects of the Society Reform Program showed no more interest in the further development of the land tenure manual than they showed in the filming of mortuary ceremonies or any of the other items on my shopping list of mediated forms of 'custom'. That is mainly because their minds were focused on the reconstruction of the Nimamar (Lihir) Community Government as a 'Development Authority', the incorporation of 'customary leaders' (*kastam lida*), 'clan authorities', and a freshly minted 'Council of Chiefs' within the framework of its administration. Furthermore, my own engagement as their consultant was not so much intended as a contribution to this process of institutional innovation as it was meant to be a demonstration of their own power to harness forms of expertise that had previously been deployed in the service of the mining company and the national government. Neither the codification and application of customary law, nor the planning and performance of mortuary ceremonies, let alone the fading memory of strangled widows, was really part of this agenda.

With the subsequent development of the Lihir gold mine, disputes about the ownership of 140 blocks of customary land in areas leased to the mining company became disputes about the distribution of very large compensation and royalty payments. In 1998, I was asked to produce a case study of one such dispute in a report written for the World Bank (Filer & Mandie-Filer 1998). I asked the former Chairman (now President) of the Landowners Association to nominate a case that would, in his view, represent the larger category. The argument that he identified was one which, in his view, had been settled by mutual agreement between the contending parties. I then asked one of the mining company's community relations staff to suggest which of the parties might be willing and able to throw some further light on the matter. He directed me to an ancient, blind and trembling widow, who related the sad story of her own exclusion from this very same agreement, despite her claim to be the 'real' owner of part of the disputed land.

This old lady said she had submitted her claim to the Local Land Court, but, since her opponents were able to persuade the magistrate that the dispute had already been settled 'within the clan', her own witnesses were never asked to testify. If her story was true, then Rule Number One would seem to have been broken. But, since she had no surviving children, siblings, nephews, or nieces, and was now in a terminal state of infirmity, the men who agreed to divide up the proceeds of 'her' land had surely acted to ensure that the flow of cash reflected the balance of power between them. Or else, as the President had told me at the outset, justice had been served by an agreement to

divide the money in accordance with the number of individuals in each of the claimant families.

Where was 'custom' in this story? If it was located in this blind old lady's memory, it could no longer find a public voice except by virtue of my own transcription of her story. I might argue that the law had once again been blind to custom, but who among the men of Lihir would agree with me? I might do better to suggest that 'claims on the basis of deeds' are holding their own against 'rights on the basis of rules', and Custom therefore survives the construction of new claims and deeds on the basis of mineral revenues. That might sound good to a fellow anthropologist, but I doubt that it would make more sense to a Lihirian than it would to a lawyer. Lihirians would more likely say that Custom survives because mortuary ceremonies are still being performed, and that is how customary leaders stake their claims, make the rules, and reproduce their standing in society. And the customary leaders would no doubt say that there is more justice to be found in the performance of a mortuary ceremony than in the proceedings of a Local Land Court.

But that is the whole point. The performance of a mortuary ceremony is the performance of Custom, *not* the performance of Law. After twenty years of mineral exploration and development, the ideology of landownership had got a firm grip on the people of Lihir. They now have good reason to spend a lot more time and effort on the demonstration of their status as 'customary landowners' because of the wealth and influence deriving from the ownership of customary land leased to the mining company. This may also imply a novel kind of choice between the institutions of Custom and those of the Land Disputes Settlement Act, and even a new kind of conflict between the separate outcomes of that choice. The 'Lihir Land Rules' may be acted out in the first type of performance or codified for presentation and reflection in the second. But the fork in the social landscape still exists, and the turn to Custom, rather than to customary law, is not obstructed by the presence of a deep hole full of bulldozers and dump trucks.

In Lihir, as in other parts of PNG, customary law still has its own place alongside the Road of Law, and anthropologists might sometimes have a role to play in saying what that place should be. But as soon as 'custom' becomes a quality or predicate of something else—be it 'law', 'land', 'groups', or 'leaders'—it ceases to be a Road in its own right. The Road of Custom is a form of public performance with its own rules, qualities and outcomes, and anthropologists may simply stand and watch (or film) these things if Custom does not have a place for them to do another kind of work. This does not mean that Custom on Lihir, or anywhere else, is a world unto itself that cannot be strengthened, weakened, or even obliterated by external forces. It means only that the terms on which it is produced or acted out have no direct equivalent in the language of another Road.

Conclusion

If Roads are ideologies, must any ideology in PNG be a Road with its own distinctive name in Tok Pisin—a keyword, if you like, that represents the object of a fetish or the subject of a certain kind of story? If there is an ideology of landownership, does it follow the Road called Compensation or is it just a new direction in the Road called Custom? If the ideology of landownership tells us that the key to ‘development’ is the compensation paid by ‘developers’ to the customary owners of natural capital, what other ideologies are now at work in PNG’s national political space? And, if there is more than one, why is it that PNG’s many political parties now seem to exhibit less in the way of ideological difference than they did at the time of national independence?

It is difficult for an anthropologist to answer these questions without being sucked into a debate about the significance (or absence) of ‘nationalism’ as an ideology or ‘national identity’ as the product of some discursive or material practice (Otto & Thomas 1997; Foster 2002). I have consciously sought to avoid this fate because I do not think that nationalism counts as a single Road, in the sense which I have described, nor does the concept of nationalism help us to understand the ideology of landownership.

One answer to my first question would be that Roads do not count as ideologies, have never done so or no longer do so, and if there are any ideologies at work in PNG today, there is no reason why they should take this metaphorical shape. It could be argued that this particular metaphor has lost its political currency precisely because the physical road network has signally failed to expand in the post-colonial period. On the other hand, regardless of the metaphor, the keys to development are still the subject of active political debate, both at the level of the village and at the level of the state. When World Bank country reports focus on the cultivation of ‘small- and medium-scale enterprise’ or the practice of ‘good governance’, how should we translate their emphasis in Tok Pisin without reiterating the Roads known as Business and Law?

If this act of translation fails to connect with the actual concerns of the ordinary citizen, that is because a Road is not just a prismatic concept that might somehow open the magic door to development, but also a distinctive type of public ceremony. In other words, it has to be travelled, and not just thought about. That is why it might be more appropriate to think of Roads as cults rather than ideologies. The distinction might seem superfluous, and even patronizing, if we think of commodity fetishism as the quintessence of capitalist ideology, but Marx did not portray the cult of commodities in a way that speakers of Tok Pisin would recognise as a Road. While the practices of shopping, marketing, or advertising may help to shape a sense of national identity (Foster 2002), they do not constitute the type of public ceremony that turns business into a Road. Only the ceremonial consecration of a ‘business’ would have this effect.

If we focus attention on this ceremonial element in the definition of a Road, we might then say that the most important Roads really are cults, in the sense of being distinctive brands of religious belief and ritual practice whose 'object' is a quest for moral salvation rather than economic development. In that case, the many forms of Christianity (*lotu*) belong to the same ideological spectrum as the Roads that are still described as 'cargo cults' by anthropologists who write about them (e.g. Lattas 1998), while the cults of Business, Custom, and Law might be only transient anomalies in this discursive space. From this point of view, we might be tempted to allow that the state or the nation can also be a transient object of 'worship', as when people celebrate the anniversary of national independence or politicians engage in that distinctive form of ceremonial practice known as the 'handout'. However, these examples might serve only to confirm that a distinctive form of ceremonial practice is not a sufficient condition for building a Road, and that is why PNG's version of nationalism seems like an ideology without a soul (Jacobsen 1995; Clark 1997; Young 1997).

So where does that leave the ideology of landownership? At a national level, there are some observers—mostly foreigners—who say that customary land tenure is the main obstacle to economic growth (Hughes 2004). This is the only argument about the gateway to development which has recently had the effect of provoking student riots in the national capital. Student riots seem to betoken the existence of an ideology, even if they do not count as public ceremonies. If there is a ceremonial element to this ideology, it is more likely to be found in the time and money spent on transporting the bodies of the urban dead to be buried in their own customary patch of ground. And that may be the point at which the ideology of landownership merges with the performance of Custom.

To be more than a cult, an ideology must also reflect, distort, celebrate, or denigrate a distinctive set of social relations, and these in turn must pervade a landscape greater than that occupied by a single local community. Should we therefore say that Roads become ideologies when they are rooted in the basic realities of the colonial, postcolonial, or neo-colonial social order? It is certainly tempting to think of Roads like Cargo, Business, Custom, and Law as if they were movements towards or away from generic forms of social and economic practice. However, my account of the cult of Law in a Sepik community has shown that this was not just a way of worshipping colonial authority, and my account of the cult of Custom in the Lihir community has shown that this is not just a way of resisting the forces of global capitalism. Whether either of these cults should be counted as an ideology therefore remains a moot point.

If the ideology of landownership is itself something more than a cult of the 'customary landowner', it appears to cover two competing brands of national populism—one which imagines a nation of sturdy smallholders following the Road of Business, while the other imagines a nation of petty landlords manning the roadblock called Custom to collect a rent from resource developers (Filer 1997). However, the choice between these avenues never quite becomes the point dividing a

government from an opposition, or one political party from another, and that is why it makes more sense to think of them as two sides of the same political coin. For this reason, I would say that the ideology of landownership is neither a nationalist nor an anti-capitalist ideology, because it largely fails to imagine a single national community, and opts instead for a set of unique 'customary' spaces where distinctive local cults (or Roads) can be pursued. By accommodating the cult of Custom and the principles of customary law, it becomes a form of parochialism rather than a form of nationalism.

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Notes

- [1] A Native Lands Registration Ordinance had been passed in 1952, but no 'native titles' were actually registered under this ordinance for the next ten years (Bredmeyer 1975).
- [2] One of their expatriate legal advisers almost became an anthropologist when he chose to write a doctoral thesis on the transformations of customary land tenure among the Tolai people of East New Britain Province (Fingleton 1985).
- [3] Compare this with the notion of 'underlying title' as elaborated by Sutton (2003).
- [4] For women to be part of this action, they must assert their status as 'customary landowners' in the matrilineal societies to which some of them belong.
- [5] The alternative phrase *pasin bilong tumbuna* ('ancestral practice') had a slightly different connotation, because the word *pasin* was normally used in a dismissive fashion, with a real or metaphorical shrug of the shoulders, to refer to behaviour which might be regrettable, but could not be avoided or controlled.
- [6] In some parts of the Sepik region, the 'new law' (*nupela lo*) was simply a new vehicle for the millenarian fantasies of 'cargo cult prophets' (Tuzin 1974), but in this particular community, the Law Men were no less hostile to such fantasies than they were to the phantoms of 'ancestral law'.
- [7] Nevertheless, this kind of 'unofficial court' was a widespread institution in the late colonial period, and was tolerated, if not actively encouraged, by colonial officials because it reduced their own judicial workload (see Strathern 1972; Barnett 1973; Oram 1973; Epstein 1974).
- [8] One of the reasons why the Law Men did not appreciate the role of the Land Mediator is that land disputes were not a major issue in their part of the country, so they could not see the point of separating the land dispute settlement process from other forms of dispute settlement.
- [9] Even in Madang Province, where Land Demarcation Committees were established at the same time as in New Ireland, Father Frank Mihalic does not seem to have heard the word *kastom* in its present usage when he published the second edition of his *Dictionary and Grammar of Melanesian Pidgin* in 1971, because he translates it as 'customs office' or 'customs shed', while the word *pasin* is translated as 'fashion, custom, manner, way of life, conduct, behaviour' (Mihalic 1971, p. 107).

- [10] The deconstruction of 'cargo cults' by anthropologists was matched, if not preceded, by the tendency of ordinary Papua New Guineans to use this as a term of abuse or ridicule, in Tok Pisin and well as in English.
- [11] Although the Association's Chairman had previously declared that 'the State is only a concept' (Filer 1995, p. 68), it was in fact the State which had agreed to pay the cost of my service to the community on this occasion.
- [12] When I first visited the islands in 1985, a significant proportion of the population was involved in something known as the Nimamar Association, whose manifesto declared that it was not a 'cargo cult', precisely because outsiders evidently thought it was.
- [13] Every men's house in the Lihir group of islands had been surveyed and photographed in an earlier social mapping study, with the full and enthusiastic cooperation of the owners.
- [14] The mining company had previously engaged another member of its staff to compile a set of 'block histories' for each of the customary land parcels which it had contrived to demarcate within its prospect area, but the work was never finished.
- [15] Foster (1995, p. 85) describes mortuary ceremonies in the neighbouring Tanga islands as 'potential flashpoints' for disputes over customary land because land claims are primarily validated through the presence of a former men's house or matrilineage ossuary.
- [16] Rule Number Four dealt with 'traditional land purchase'.

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